

has been the *usage* of the congregation; and, if such usage do not contravene public policy, will be guided by it as evidence of the intention in the administration of the trust. And by 7 & 8 Vict. c. 45, s. 2, if the instrument of trust do not in express terms, or by reference to some book or other document, define the religious doctrines, twenty-five years' usage immediately preceding any suit is made conclusive evidence thereof (*g*). But if the purpose of the settlors appear clearly upon the instrument, the Court, in that case, though the usage of the congregation [*534] may have run in a different channel, *cannot change the nature of the original institution: it is not competent for the majority of the congregation, or for the managers of the property, to say, "We have altered our opinions: the chapel in future shall be for the benefit of persons of the same persuasion as ourselves" (*a*).

17. **Appointment of new trustees.** — If the deed of endowment neither provide for the succession of *trustees* nor the election of the *minister*, an inquiry will be directed, who, according to the nature of the establishment, are entitled to propose trustees, and to elect the minister (*b*); and if the election of the minister properly belong to the congregation, the majority is for that purpose the congregation (*c*). The appointment of the minister cannot, in such a case, belong to the heir of the surviving trustee, who may not be of the same persuasion, but, it might happen, a Roman Catholic or Jew (*d*).

Notices. — For the valid election of a minister due notice

(*g*) See *Attorney-General v. Hutton*, Drur. 530. As to Roman Catholic Charities, see 23 & 24 Vict. c. 134, s. 5.

(*a*) *Attorney-General v. Pearson*, 3 Mer. 400, *per* Lord Eldon; *Foley v. Wontner*, 2 J. & W. 247, *per eundem*; *Craigdallie v. Aikman*, 1 Dow's P. C. 1; *Milligan v. Mitchell*, 3 M. & Cr. 73; *Broom v. Summers*, 11 Sim. 353; *Attorney-General v. Murdoch*, 7 Hare, 445; 1 De G. M. & G. 86; *Attorney-General v. Munro*, 2 De G. & Sim.

122; *Attorney-General v. Corporation of Rochester*, 5 De G. M. & G. 797.

(*b*) *Davis v. Jenkins*, 3 V. & B. 151, see 159; and see *Leslie v. Birnie*, 2 Russ. 114. The 13 & 14 Vict. c. 28, seems to confer a power of appointing new trustees, for the *special purposes of that Act*, where there is no power or the power has lapsed.

(*c*) *Davis v. Jenkins*, 3 V. & B. 155; and see *Leslie v. Birnie*, 2 Russ. 114.

(*d*) *Davis v. Jenkins*, 3 V. & B. 155.